

**UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION**

DEBRA NELSON,

Plaintiff,

vs.

CASE NO.: 3:25-cv-1447-MCR-ZCB

**AMENTUM GOVERNMENT
SERVICES PARENT HOLDINGS
LLC, CLARENCE XANDER,
JANICE HUGHES, HEATHER
GUNN, DAKOTA THOMAS,
ELIAS VELASQUEZ, and YUSEF
ABDUL-JAMI,**

Defendants.

**DEFENDANTS' UNOPPOSED MOTION FOR AN
EXTENSION OF TIME TO RESPOND OR OTHERWISE
PLEAD TO PLAINTIFF'S SECOND AMENDED
COMPLAINT AND DEMAND FOR JURY TRIAL**

Defendants, AMENTUM GOVERNMENT SERVICES PARENT HOLDINGS LLC, CLARENCE XANDER, JANICE HUGHES, HEATHER GUNN, DAKOTA THOMAS, ELIAS VELASQUEZ, and YUSEF ABDUL-JAMI (collectively, "Defendants"), by and through undersigned counsel, and pursuant to Rule 6(b)(1)(a), Federal Rules of Civil Procedure, and Rule 6.1, Local Rules of the U.S. District Court, Northern District of Florida, respectfully file this Motion for an

Extension of Time to Respond or Otherwise Plead to Plaintiff's Second Amended Complaint and Demand for Jury Trial (the "Motion"). In support of the Motion, Defendants state as follows:

1. On August 26, 2025, Plaintiff filed a Complaint and Demand for Jury Trial [Doc. 1] ("Complaint").

2. On August 28, 2025, the Court struck Plaintiff's Complaint as an impermissible shotgun pleading and ordered that Plaintiff file an amended complaint on the Court approved complaint form by September 18, 2025 [Doc. 4].

3. On September 9, 2025, Plaintiff filed a Complaint for Employment Discrimination [Doc. 5] ("Amended Complaint").

4. On September 17, 2025, the Court struck Plaintiff's Amended Complaint as an impermissible shotgun pleading and as violative of the page limits set in the Local Rules [Doc. 6]. The Court ordered Plaintiff to file a Second Amended Complaint on the Court approved complaint form by October 8, 2025. *Id.*

5. On September 22, 2025, Plaintiff filed a Second Amended Complaint and Demand for Jury Trial [Doc. 7] ("Second Amended Complaint").

6. On October 4, 2025, Defendant, Janice Hughes, was served with the Second Amended Complaint, making her deadline to respond October 27, 2025. On October 6, 2025, Defendants, Amentum Government Services Parent Holdings LLC, Elias Velasquez, and Yusef Abdul-Jami, were served with the Second

Amended Complaint, likewise making their deadline to respond October 27, 2025. The remaining Defendants were served on October 17, 2025, making their response deadline November 7, 2025. Accordingly, this Motion is timely.

7. On October 22, 2025, Plaintiff served the undersigned counsel with courtesy copies of Plaintiff's Motion for Leave to File Third Amended Complaint ("Motion for Leave") and a proposed Third Amended Complaint. It is the undersigned's understanding that Plaintiff's Motion for Leave shortly will be docketed as filed with the Court in this case.

8. Plaintiff did not confer with the undersigned before filing and serving the Motion for Leave. The undersigned is in the process of reviewing and discussing the proposed Third Amended Complaint with Defendants. Upon initial review, the proposed Third Amended Complaint appears deficient because it incorporates by reference factual allegations from other unspecified documents and it does not clearly identify the parties against whom each count is pled. The undersigned is also in the process of conferring with Plaintiff regarding the Third Amended Complaint.

9. The amendments in the Third Amended Complaint are significant in that Plaintiff has changed the claims pled against certain Defendants. If the Court grants Plaintiff's Motion for Leave and accepts the Third Amended Complaint, the Third Amended Complaint will replace the Second Amended Complaint as the

operative pleading. To the extent Defendants are required to respond to the Second Amended Complaint, Defendants' responses would become nullities.

10. For the foregoing reasons, Defendants respectfully request that their deadline to respond to the operative pleading be extended until 21-days after the Court rules on Plaintiff's Motion for Leave.

11. This Motion is made in good faith and not for the purposes of delay or any improper purpose. No parties will be prejudiced by the relief sought herein, and the requested relief otherwise promotes the interests of judicial economy.

MEMORANDUM OF LAW

Rule 6(b)(1)(A) of the Federal Rules of Civil Procedure provides that where an enlargement of time is requested before the expiration of the period originally prescribed, such enlargement may be granted by the Court for cause shown. Rule 6.1, Local Rules of the U.S. District Court, Northern District of Florida, provides that a stipulation to extend a deadline is effective only with Court approval. The extension of time requested herein will conserve the parties' and Court's resources by not requiring Defendants to respond to a pleading that may not remain as the operative complaint if the Court grants Plaintiff's Motion for Leave and accepts the proposed Third Amended Complaint. Accordingly, Defendants have shown good cause for the requested enlargement of time, which is timely requested before the expiration of the present deadline for Defendants to plead or otherwise respond to

Plaintiff's Second Amended Complaint. Granting this Motion will not prejudice any party or impact any other deadlines in this case. Therefore, Defendants respectfully request that the deadline for Defendants to respond to the operative pleading be extended to and including 21-days after the Court rules on Plaintiff's Motion for Leave to File Third Amended Complaint.

Compliance with N.D. Fla. L.R. 7.1(B) and (C)

Pursuant to N.D. Fla. L.R. 7.1(B) and (C), the undersigned has conferred with Plaintiff and Plaintiff does not oppose the relief requested herein.

Compliance with N.D. Fla. L.R. 7.1(F)

Pursuant to N.D. Fla. L.R. 7.1(F), counsel for Defendants confirm this Motion and the supporting Memorandum of Law total 1,053 words.

WHEREFORE, Defendants respectfully request that this Honorable Court enter an Order: (i) granting this Motion, and (ii) extending the deadline for Defendants to respond to the operative pleading to and including 21-days after the Court rules on Plaintiff's Motion for Leave to File Third Amended Complaint.

DATED this 23rd day of October, 2025.

Respectfully submitted,

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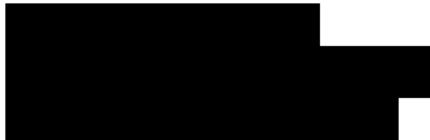
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Attorneys for Defendant

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 23rd day of October 2025, a true and correct copy of the foregoing was electronically filed with the Court by using the CM/ECF system and served via e-mail to the following *pro se* Plaintiff:

Debra Nelson



Pro se Plaintiff

/s/ Lindsay D. Swiger
Lindsay D. Swiger